



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8931 (EXTENSION)
FIFTH REVISION October 5, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8931 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 30 1992

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

Marsulex, Inc.
North York, Ontario, Canada
(U.S. AGENT: Erik G. Bohn
Brookfield, CT)

November 29, 1991



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DOT-E 8931
(FIFTH REVISION)

1. Marsulex, Inc., Ontario, Canada (U. S. Agent: Erik G. Bohn, Brookfield, Connecticut), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of DOT Specification 111A100W2 tank cars with bottom outlets, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Marsulex, Inc.'s application dated March 1, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon, and supplemental correspondence dated June 1 and June 19, 1990.
3. HAZARDOUS MATERIALS (Descriptor and class). Sulfuric acid classed as a corrosive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Sulfuric acid.
5. REGULATION AFFECTED. 49 CFR 173.31(b)(3), 173.272, and 179.201-1.
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 111A100W2 tank cars which have been modified with a bottom outlet to allow bottom unloading. Each tank must be equipped with a Jamesbury ball-type (Procor Drawing No. 67414, April 14, 1967; modified by CIL Drawing No. BP 3562, 12/81) or wafer sphere (Procor Drawing No. 75630, May 7, 1973; modified by CIL Drawing No. BP 3563, 12/81) bottom unloading outlet valve or equivalent. Bottom outlet protection on all tank cars must be provided as prescribed on Procor Drawing SKC 4114 dated August 18, 1976.
8. SPECIAL PROVISIONS.
 - a. Each tank car must be plainly marked in four inch letters and numerals "DOT-E 8931", above the commodity name or tank specification number. Tank cars marked "SP 730" prior to the issuance of this exemption may be transported under the terms of this exemption.

- b. The reporting mark and total number of tank cars must be on file with the Office of Hazardous Materials Transportation (OHMT).
 - c. Loaded tank cars must be transported in train load lots (unit train configuration). Tank cars that contain the residue of a hazardous material may be transported in regular freight service.
 - d. Loaded tank cars or tank cars containing the residue of a hazardous material which require mechanical maintenance enroute may move on regular freight trains once repaired.
 - e. The bottom outlet "Hammer-lock" closure must provide a liquid-tight seal.
9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the OHMT as soon as practicable.
10. EXPIRATION DATE. March 31, 1992.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

OCT 5 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

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